

Transfer of Accrued Rights upon Intra-group Transfer/Change of Business Ownership Form

有聯繫公司間或更改業務擁有權時之成員轉移表格

Notes:

- This Form should ONLY be used in case an Employee Member is transferring the accumulations under his/her Existing Employer's MPF exempted ORSO registered scheme ("exempted scheme") to the New Employer's exempted scheme as a result of transfer of employment between associated companies or change of business ownership.
- Please complete this Form in Block Letter.
- Please initial next to any corrections you make on this Form.
- * Delete whichever is inappropriate.
- Employee Member should give his/her passport number ONLY when he/she does NOT possess a HKID Card.
- This Form should be signed by the Employee Member and the Existing Employer and the New Employer with company chops of both Employers.
- Upon completion of this Form, the New Employer should return this Form to the transferee service provider.
- To effect the intra-group transfer of the Employee Member, the Existing Employer is not required to submit termination notice for the transfer member.
- "The Commencement Date for Vesting Entitlement" in Part A is used in determination of vesting of employer contributions under the New exempted scheme on final termination of his/her employment by New Employer.
- The information collected from you and in respect of you can be used by Manulife, approved trustees and the Mandatory Provident Fund Schemes Authority ("MPFA") in activities relating to the processing of the transfer as requested in this Form and providing administration services. The information may be transferred to other division(s) within Manulife, the relevant approved trustees or other parties including delegates, intermediaries or any service providers of Manulife or the relevant approved trustees, for such purpose(s) or for a purpose directly related to such purpose(s). All data processes may involve a transfer of information to places either within or outside the Hong Kong Special Administrative Region. You are required to supply the information in this Form and failure to do so may result in your request being delayed.
- The MPFA and other regulatory bodies in any jurisdiction shall be authorized to inspect any information under the scheme.
- By writing to the Privacy Officer of your scheme administrator, you can correct and have access to your personal data.
- All information may be treated by Manulife in the same manner as mentioned in the "Notice to Customers relating to the Personal Data (Privacy) Ordinance" ("Notice"). In case you have not read the Notice before, you can obtain such Notice from your Manulife's intermediary or through Manulife's website at www.manulife.com.hk.
- The information of the contact person(s)/authorized person(s) is collected in their official capacities.
- If necessary, please seek assistance from the service provider of your scheme.

注意事項：

- 此表格只適用於有聯繫公司間或因更改業務擁有權而需將計劃之成員及其於成員帳戶內之積存利益，由現僱主之獲強積金豁免的職業退休註冊計劃內（下稱「獲豁免計劃」）轉移至另一間有聯繫公司或現公司的新業務擁有權之獲豁免計劃內。
- 請以正楷填寫本表格。
- 如須作出任何更改，請於刪改之位置旁簽署。
- * 表示刪除不適用之處。
- 護照號碼只適用於沒有香港身份證之計劃成員。
- 本表格須由成員簽署、現僱主及新僱主簽署及蓋章。
- 新僱主於填妥本表格後請交回新服務提供者。
- 為確保有聯繫公司間之轉移能順利進行，現僱主不須為轉移成員遞交僱員終止受僱通知書。
- 當成員終止受僱於新僱主時，將根據甲部之歸屬權益開始日期以釐定其在新獲豁免計劃下的僱主供款歸屬部份。
- 宏利、核准受託人及強制性公積金計劃管理局（簡稱「積金局」）可使用從閣下收集及關於閣下的資料以處理閣下在本表格內要求的轉移事宜及提供管理服務。為達致該等目的，或直接或間接與該等目的有關的目的，所提供的資料可轉移予宏利內其他部門、有關核准受託人或其他人士/團體，包括宏利或有關核准受託人的受委託者、強積金中介人或任何服務提供者。所有資料處理過程或會涉及資料轉移至香港特別行政區及以外地區。請提供本表格所需的資料，否則閣下之要求或會因此而被延誤。
- 積金局及任何司法管轄區的其他監管團體將獲授權查看計劃內的任何資料。
- 閣下可以書面向計劃管理人之個人資料主任更改及查閱閣下的個人資料。
- 宏利可按於《有關〈個人資料(私隱)條例〉的客戶通知》（「通知」）所述，處理有關資料。假如閣下未有細閱該通知，閣下可從閣下的宏利中介人或透過宏利網址www.manulife.com.hk取得該通知。
- 聯絡人／獲授權人士的資料乃因應其職務身份而收集。
- 如有需要，請向所參與計劃的服務提供者求助。

Part A - Transfer Details of the Employee Member 甲部－成員轉移資料

Member Name 成員姓名 (as shown on HKID card) (必須與身份證相同)	Chinese 中文	HKID Card / Passport* No. 香港身份證 / 護照* 號碼	
	English 英文		
Effective Date of Joining New Employer 受僱於新僱主日期 (Same as Effective Date of Transfer) (等同轉移生效日期)	DD日	MM月	YYYY年
		Date of Joining Existing Employer 受僱於現僱主日期	DD日
			MM月
			YYYY年
Commencement Date for Vesting Entitlement 歸屬權益開始日期	DD日	MM月	YYYY年
		Date of Joining Existing Employer's exempted scheme 參加現僱主之獲豁免計劃日期	DD日
			MM月
			YYYY年
Last Contributory Month in Existing Employer's exempted scheme 於現僱主之獲豁免計劃最後供款月份			MM月
			YYYY年

Part B - Details of Existing Employer 乙部－現僱主詳情

Existing Employer Name 現僱主名稱	
Contact Person 聯絡人名稱	Contact Telephone No. 聯絡電話號碼
Name of Existing Service Provider 現服務提供者名稱	
Address of Existing Service Provider 現服務提供者地址	
Plan/Policy Name of the Existing Employer 現僱主之計劃名稱	
Plan number of the Existing Employer 現僱主之計劃編號	Member's Account No. 成員帳戶編號

Part C - Details of New Employer 丙部－新僱主詳情

New Employer Name 新僱主名稱	
Contact Person 聯絡人名稱	Contact Telephone No. 聯絡電話號碼
Name of New Service Provider 新服務提供者名稱	
Address of New Service Provider 新服務提供者地址	
Plan/Policy Name of the New Employer 新僱主之計劃名稱	
Plan number of the New Employer 新僱主之計劃編號	Member's Account No. 成員帳戶編號

Part D - Declaration and Authorisation

丁 部 — 聲 明 及 授 權

It is DECLARED, UNDERSTOOD and AGREED that

- The Existing Employer and the New Employer confirm that the above-named is an Employee Member of the exempted scheme of the Existing Employer and to transfer the accumulations under his/her member account to the exempted scheme of the New Employer as a result of transfer employment between associated company or change of business ownership in accordance with Section 2 (4) of the Mandatory Provident Fund Schemes (Exemption) Regulation.
- The Existing Employer agrees to release the full amount of the accumulations under the member account of the Employee Member to the New Employer's exempted scheme after the settlement of the contribution for the Last Contributory Month as shown above and the New Employer agrees to accept the said accumulations from the Existing employer's exempted scheme to be credited to the Employee Member's account under the New Employer's exempted scheme.
- The Existing Employer and New Employer agree that the Employee Member's employment by the New Employer shall be treated as continuous by virtue of employment, including the determination of the contribution amount calculation, the Employee Member's vesting entitlement to employer contributions on final termination with New Employer and his/her entitlements under the Employment Ordinance (such as severance payment / long service payment). The Existing Employer agrees the New Employer to receive, if any, all the unvested benefits on final termination of the Employee Member's employment with the New Employer.
- The Employee Member understands that all the accumulations under his/her member account will be transferred from the Existing Employer's exempted scheme to the New Employer's exempted scheme and agrees to release of all personal information from the Existing Employer to the New Employer for the purposes of processing the transfer and all subsequent services.
- The Employee Member understands, accepts and agrees to the governing rules of the New Employer's exempted scheme, including vesting scales, which he/she acknowledges may differ from the governing rules of the exempted scheme of the Existing Employer. The Employee Member shall no longer hold any right under the Existing exempted scheme that can be exercised by reason of the termination of employment of the Member with the Existing Employer.
- The Employee Member understands and accepts that his/her employment is considered continuous for the purpose of determining his/her vesting entitlement to employer contributions and his/her entitlements under the Employment Ordinance as per clause 3 and in consideration thereof understands and accepts that the New Employer may offset against the accrued rights derived from the employer contributions made by both the Existing Employer and New Employer upon final termination of his/her employment with the New Employer.
- The New Employer and the Employee Member agree to make contribution from the month following the Last Contributory Month in respect of the Existing exempted scheme.
- During the above transfer process, it is understood that the accumulations under the member account of the Existing exempted scheme may be surrendered into cash and transferred to the New exempted scheme for reinvestment according to the Employee Member's investment instruction in the New exempted scheme. Manulife shall effect the transfer upon receipt of all necessary information required by Manulife and all the outstanding contributions and contribution surcharge, if any, in the Existing exempted scheme have been paid. The transfer is subject to risk factor including market fluctuation of constituent fund unit price and Manulife will not be held liable for any investment gain or loss involved.
- The Effective Date of Joining New Employer, Date of Joining Existing Employer, Commencement Date for Vesting Entitlement, Date of Joining Existing Employer's exempted scheme and Last Contributory Month in Existing Employer's exempted scheme as specified in Part A of this form are recognized by the Employee Member, the Existing Employer and the New Employer and shall supersede similar information mentioned on any other forms provided to the service provider.
- The Date of Joining Existing Employer's exempted scheme will be used to determine the status of Employee Member in the New exempted scheme and consequently used to determine if any minimum MPF benefits will be preserved on the final termination of the Employee Member's employment with the New Employer.
- The New Employer and the Existing Employer hereby agree that service provider can rely on this declaration, and the New Employer and the Existing Employer shall indemnify and hold the service provider harmless on demand against all costs, expenses, losses, claims, proceedings and damages, suffered or incurred as a result thereof.
- The Employee Member, the New Employer and the Existing Employer further declare, understand and agree that any reasonable out of pocket direct expenses properly incurred by Manulife (if any) in the above transfer will be borne by the Existing Employer and the New Employer jointly and severally. If for any reason that the above transfer is being reversed at the request of any regulatory authority or due to any legislative requirements, no claim can be made by any of the parties for any investment gain or loss involved as if the above instructions and reversal are all being effected in a proper and legal manner. It is acknowledged that the above instructions are not given in reliance on any representation or advice from the service provider and the Employee Member, the New Employer and the Existing Employer should take independent professional advice in respect of the alternative ways in handling the above matter.

吾等聲明、明白並同意

- 現僱主和新僱主確認上述人士為現僱主的獲豁免計劃之成員，並根據強制性公積金計劃（豁免）規例第2(4)條規定，於該成員因轉移受僱於另一間有聯繫公司或新業務權擁有人後，將其於現計劃成員帳戶內之積存利益轉移至新僱主的獲豁免計劃內。
- 現僱主同意接收上述最後供款月份之供款後將成員帳戶內之積存利益轉移至該成員的新僱主之獲豁免計劃，而新僱主亦同意接收該有關積存利益，並將其記入該成員在新僱主的獲豁免計劃之成員帳戶。
- 現僱主和新僱主同意，該成員受僱於有聯繫公司或新業務權擁有人後，該成員將被視作連續性受僱，以確定其權益包括其僱主供款款額計算、其僱主供款部份之歸屬權益及按照僱傭條例所享有之權益而言(如遣散費/長期服務金)。現僱主同意該成員於最後終止受僱於另一間有聯繫公司或新業務權擁有人時，新僱主將接收所有未歸屬權益。
- 成員明白他/她所有於現僱主的獲豁免計劃之所有積存利益將會被轉移至新僱主之獲豁免計劃，並同意現僱主向新僱主提供其一切有關個人資料，以處理是項轉移及其後服務。
- 成員明白、接受及同意新僱主的獲豁免計劃之規管條文，包括歸屬比例，他她並承認有關條文可能會與現僱主的獲豁免計劃之規管條文不同。成員將再不可行使於現獲豁免計劃下成員與現僱主在終止受僱關係時享有之權利。
- 成員明白和接受他她被視作連續性受僱以確定他她以上條款(3)所述僱主供款之歸屬權益及根據僱傭條例享有的權益，並因此明白和接受他她最後終止受僱於新僱主時，其新僱主將以現僱主和新僱主於僱主供款帳戶內之累算權利，抵銷根據僱傭條例所須支付予他她的遣散費或長期服務金。
- 新僱主和成員同意於現僱主獲豁免計劃之最後供款月份之下一個月份起開始作出供款。
- 於收訖宏利所需之有關資料，及現獲豁免計劃所有未清繳之供款和供款附加費(如適用)已全部支付後，宏利將進行有關轉移。在現獲豁免計劃中之成員帳戶內之積存利益或以現金方式被贖回並轉移至新獲豁免計劃內。該筆贖回款項將全數依據成員於新獲豁免計劃內之投資指示再次投資。上述轉移受風險因素影響，其中包括成分基金單位價格於市場上的波動，而宏利將不會就投資的收益或損失承擔任何責任。
- 於本申請表格甲部內之成員受僱於新僱主日期、成員受僱於現僱主日期、歸屬權益開始日期、參加現僱主之獲豁免計劃日期及於現僱主之獲豁免計劃最後供款月份，已獲成員、現僱主及新僱主確認。若上述資料與其他表格所載的有所不符，服務提供者將以本表格之資料取代。
- 參加現僱主之獲豁免計劃日期將用作介定成員於新獲豁免計劃之成員身份狀況，從而決定成員於最後終止受僱於新僱主時是否需要保存最低強制性公積金利益。
- 新僱主及現僱主均同意服務提供者可依據此聲明，並謹此向服務提供者作出彌償保證，新僱主及現僱主願意承擔服務提供者就此轉移所引致之一切費用、開支、損失、索償、訴訟、或賠償。
- 成員、新僱主及現僱主進一步聲明，吾等明白及同意，任何因以上轉移而直接招致宏利實付而合理的費用（如有者），將由前僱主及新僱主共同及各別地承擔。如在任何情況下，以上轉移被任何監管機構或因應法例規定而要求撤銷，則任何一方均不得申索所涉及的投資收益或虧損，就如以上指示及撤銷均在適當及合法的情況下執行。吾等謹確認上列指示，非基於服務提供者的任何指示或建議，並必就處理上列事件的其他方法尋求獨立的专业意見。

Signature of Employee Member 成員簽署	Date 日期
Existing Employer Authorized Signature(s) and Company Chop 現僱主授權簽署及公司印章 Date 日期：	New Employer Authorized Signature(s) and Company Chop 新僱主授權簽署及公司印章 Date 日期：